

26CMCV00193 26CMCV00193

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-16

Motion: CROSS-DEFENDANT'S DEMURRER TO THE CROSS-COMPLAINT

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Case Number: 26CMCV00193 Hearing Date: July 16, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

TOOTH & NAIL INDUSTRIES, INC.,

Plaintiff,

vs.

BHULLAR

PROPERTIES, LLC.,

Defendant.

BHULLAR

PROPERTIES, LLC.,

Cross-Complainant,

vs.

TOOTH

& NAIL INDUSTRIES, INC.,

Cross-Defendant.

)

)

CASE NO: 26CMCV00193

[TENTATIVE]

ORDER RE: CROSS-DEFENDANT'S DEMURRER TO THE CROSS-COMPLAINT

Dept.

A

DATE:

July 16, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 01/28/2026

1st

AMENDED COMPLAINT FILED: 02/24/2026

CROSS-COMPLAINT

FILED: 05/08/2026

TRIAL:

10/30/2028

MOVING

PARTY: Plaintiff/Cross-Defendant

Tooth & Nail Industries, Inc.

RESPONDING

PARTY: Defendant/Cross-Complainant

Bhullar Properties, LLC

1. Background

This is an

action for breach of lease. Plaintiff Tooth & Nail Industries, Inc.

("Plaintiff") alleges that on October 6, 2023, it entered into a commercial lease with defendant Bhullar Properties, LLC ("Defendant") to rent the property located at 631 E. University Drive, Carson, CA, 90746 (the "Property"). Plaintiff alleges that Defendant began construction activities at the Property in July 2025, causing damage to the roof of the Property and allowing rainfall to enter the Property. Plaintiff alleges that it notified Defendant of the damage, unsafe conditions, and rodent infestation, but that Defendant failed to take corrective action, resulting in part of the ceiling collapsing on November 16, 2025 and rendering the Property untenable. Plaintiff alleges that as a result, Plaintiff was constructively evicted and forced to vacate the Property.

Plaintiff

additionally alleges that after the filing of the instant action and after Plaintiff had already vacated the Property, Defendant issued a three-day notice to pay rent or quit. Plaintiff alleges that, shortly after posting the notice, Defendant engaged in self-help eviction by changing the exterior locks of the Property.

In its cross-complaint,

Defendant alleges that in late 2024, Plaintiff failed to pay rent due under the lease agreement. Defendant also alleges that Plaintiff fraudulently misrepresented the purposes for which Plaintiff leased the Property.

2. Discussion

Plaintiff

demurs to all four causes of action in Defendant's cross-complaint. Plaintiff contends that the Cross-Complaint fails to state sufficient facts to allege a cause of action. In opposition, Defendant contends that the Cross-Complaint is adequately pled.

A demurrer for

sufficiency tests whether the complaint or cross-complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747 (Hahn).) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face

of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.)

The ultimate facts alleged in the complaint or cross-complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403; see also Shields v. County of San Diego (1984) 155 Cal.App.3d 103, 133 [stating, “[o]n demurrer, pleadings are read liberally and allegations contained therein are assumed to be true.”]) “The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

a. The first cause of action for breach of contract is adequately pled

Plaintiff

contends that the first cause of action for breach of contract fails because the Cross-Complaint fails to adequately allege how Defendant fully performed under the agreement, how Plaintiff breached the agreement, or how damages were incurred. To prevail on a cause of action for breach of contract, the cross-complainant must prove (1) the contract, (2) the cross-complainant's performance of the contract or excuse for nonperformance, (3) the cross-defendant's breach, and (4) the resulting damage to the cross-complainant. (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

The

Cross-Complaint alleges that Defendant fully performed under the contract. (Cross-Compl. ¶ 25.) The Cross-Complaint also alleges that, pursuant to the contract, Defendant permitted Plaintiff to take possession of the Property. (Cross-Compl. ¶ 15.) This is sufficient to plead Defendant's performance of the contract.

The

Cross-Complaint alleges that Plaintiff breached the contract by failing to pay rent in the total amount of \$76,776.29. (Cross-Compl. ¶ 26.) This is sufficient to plead breach and resulting damages. The first cause of action in the Cross-Complaint is adequately pled. The court will therefore overrule Plaintiff's demurrer to this cause of action.

b. The second cause of action for breach of covenant of good faith and fair dealing is adequately pled

Plaintiff

contends that the second cause of action for breach of the implied covenant of good faith and fair dealing fails because it fails to allege any conduct separate and apart from the breach of contract cause of action.

" 'Every

contract imposes upon each party a duty of good faith and fair dealing in its performance and its enforcement.' ...The covenant of good faith is read into contracts in order to protect the express covenants or promises of the contract." (Foley v. Interactive Data Corp. (1988) 47 Cal.3d 654, 684, 690.) "If the allegations [of a cause of action for breach of the implied covenant of good faith] do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1395.)

Here, the

Cross-Complaint alleges that Plaintiff misrepresented the purposes for which Plaintiff sought to use the Property in order to induce Defendant to enter into the contract and lease the Property to Plaintiff. This allegation is distinct from the facts alleged in Defendant's cause of action for breach of contract and separately alleges conduct frustrating the purposes of the agreement. Defendant has therefore adequately alleged a cause of action for breach of the implied covenant of good faith and fair dealing.

The court will

therefore overrule Plaintiff's demurrer to this cause of action.

c. The third cause of action for fraudulent

misrepresentation fails

Plaintiff

contends that the third cause of action for fraudulent misrepresentation fails to allege sufficient facts to satisfy the heightened pleading standard for fraud.

“To establish

a claim for fraudulent misrepresentation, the plaintiff must prove: ‘(1) the defendant represented to the plaintiff that an important fact was true; (2) that representation was false; (3) the defendant knew that the representation was false when the defendant made it, or the defendant made the representation recklessly and without regard for its truth; (4) the defendant intended that the plaintiff rely on the representation; (5) the plaintiff reasonably relied on the representation; (6) the plaintiff was harmed; and (7) the plaintiff’s reliance on the defendant’s representation was a substantial factor in causing that harm to the plaintiff.” (Perlas v. GMAC Mortgage, LLC (2010) 187 Cal.App.4th 429, 434.) The heightened pleading standard for fraud requires that the plaintiff or cross-complainant plead facts showing how, when, where, to whom, and by what means the representations were made. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

The

Cross-Complaint alleges that Plaintiff and Cross-Defendant Lenise Yarber made false representations to Defendant stating that they wished to lease the Property for the purpose of providing hair- and beauty-related services to the public, but that Plaintiff provided dental services in addition to the aforementioned hair- and beauty-related services. The Cross-Complaint alleges that this representation was made in order to induce Defendant to enter into the lease, and that Defendant reasonably relied on this representation. However, the Cross-Complaint does not allege facts showing that any harm arose as a result of the alleged misrepresentation; although the Cross-Complaint alleges that “[a]s a result of Cross-Complainant’s reliance on Cross-Defendants’ false representations, Cross-Complainant was and continues to be harmed in substantial amounts of money,” (Cross-Compl. ¶ 46), this is a conclusory allegation that is insufficient to allege harm at the demurrer stage. Furthermore, the Cross-Complaint does not allege facts showing how, where, or by what means the representations were made.

The court will

therefore sustain Plaintiff's demurrer to this cause of action in the Cross-Complaint, with 20 days leave to amend.

d. The fourth cause of action for liability under written guaranty is adequately pled

Plaintiff

contends that the fourth cause of action for liability under written guaranty fails because it is reliant upon the first cause of action for breach of contract, which Plaintiff contends fails. However, the court has overruled Plaintiff's demurrer to the first cause of action. The court will therefore overrule Plaintiff's demurrer to the fourth cause of action in the Cross-Complaint.

3. Conclusion

Based on the foregoing, the court OVERRULES IN PART and SUSTAINS IN PART Plaintiff's demurrer to the Cross-Complaint. The court OVERRULES Plaintiff's demurrer to the first, second, and fourth causes of action in the Cross-Complaint. The court SUSTAINS Plaintiff's demurrer to the third cause of action in the Cross-Complaint, with 20 days leave to amend.

Plaintiff is ordered to give notice.

IT IS SO ORDERED.

DATED: July 16, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court